

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS OCTOBER TERM, A. D. 2025.

BEFORE HER HONOR: YAMIE QUIQUI GBEISAY, SR CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : CEANEH D. CLINTON-JOHNSON ASSOCIATE JUSTICE
BEFORE HER HONOR: BOAKAI N. KANNEH..... ASSOCIATE JUSTICE

The Management of the National Port Authority,	)	
(NPA) the comptroller, Mr. Varney Bafalie and	)	
all those under their authority of the Freeport of	)	
Liberia..... Appellant	)	
	)	Appeal
Versus	)	
	)	
The Aggrieved Members of the National	)	
Customs Brokers of Liberia..... Appellees	)	

GROWING OUT OF THE CASE:

The Aggrieved Members of the National	)	
Customs Brokers of Liberia..... Petitioners	)	
	)	Petition for the Writ
Versus	)	of Prohibition
	)	
The Management of the National Port Authority,	)	
(NPA) the comptroller, Mr. Varney Bafalie and	)	
all those under their authority of the Freeport of	)	
Liberia..... Respondent	)	

Heard: November 13, 2025

Decided: February 12, 2026

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT.

This appeal arises from the ruling of our distinguished colleague while presiding in the Chambers of this Court. The ruling granted the alternative writ and confirmed the peremptory writ. The appellant excepted to the ruling, and the matter is now before us for review.

The appellee, in its petition for the issuance of a writ of prohibition, substantially averred that the appellant, without a court order, acted ultra vires by issuing a "Stop Order" against the appellee, thereby preventing the appellee from accessing the Freeport of Monrovia and from clearing consignees' containers being shipped to the port. The appellees contended that the appellant had no right to restrain the appellee's guaranteed right under Article 20(a) of the 1986 Constitution without a court order; that the appellees are aggrieved members of the Customs Brokers Association, a

recognized group that has been working closely with the appellant to ensure the smooth clearance of goods shipped to the Freeport of Monrovia; that the appellant's denial of entry into the Freeport caused embarrassment to the appellees' clients and loss of income; and that the appellant's decision to deny the appellees access to the Freeport was triggered by an investigation conducted by the appellees without the appellant's involvement into the engagement of some employees of the appellee in fraudulent activities by diverting funds paid by customs brokers for personal use.

They alleged that, over the years of their operation as customs brokers at the port, they had earned the credibility and recognition of the appellant and the Liberia Revenue Authority (LRA). They further stated that, surprisingly, after a meeting with the appellant that cleared the appellees of any operational discrepancies, the appellant nevertheless issued a Stop Order to the Seaport Authority, instructing that none of the appellees' members should have access to the Freeport on the ground that they were found culpable of fraudulent activities without being accorded due process of law. They contended that the appellant's action in preventing them from accessing the Freeport amounted to implicit dismissal from employment with the Customs Brokers Association, in violation of this Court's holding in *Soumie et al. v. Mathis and Sea F. Corp.*, 40 LLR 352 (2001). They finally argued that prohibition is the appropriate remedy to undo the appellant's actions.

In its returns, the appellant contended that it never exercised judicial functions or acted ultra vires, so as to give rise to prohibition, and that prohibition does not lie to control administrative or ministerial acts. It further argued that the alleged "Stop Order," not having been attached to the appellees' petition, rendered the petition defective. The appellant asserted that, in the exercise of its authority as the port manager, it grants access passes to the appellees to conduct the business of clearing goods for various business entities and individuals, for which fees are paid to the appellant. The appellant alleged that, to verify compliance with fee payments and prevent fraud, it conducted an audit that uncovered fraudulent transactions by the appellees and some of the appellant's

employees, resulting in significant financial losses. Based on these losses, a verification committee comprising representatives of the appellees' institution was established, and an investigation revealed that 60 deposit slips had been altered by the appellees and others. The appellees were notified that unless payment was made on the altered deposit slips, they would not be permitted onto the appellant's premises, an action the appellant maintains falls within its authority.

The appellant further argued that its internal investigation involving its employees did not concern the appellees; therefore, inviting the appellees was unnecessary, and the failure to do so provides no legal basis for prohibition. They asserted that when it became necessary to invite the appellees to verify the altered deposit slips, the appellees were invited and attended the verification exercise. Thus, the appellees were not denied due process. The appellant argued that, as a public corporation, it has the right to ensure compliance by any group or business operating at the Freeport, and that access to the port is a privilege, not a right. Ensuring compliance, they contended, does not amount to judicial action. The appellant further asserted that its decision to deny access to the appellees was taken for security reasons and to deter non-compliant groups from using the Freeport without proper monitoring. It therefore prayed that the petition be denied and dismissed.

The records show that the Chambers Justice heard and granted the petition, concluding that the appellant violated the appellees' due process rights by failing to involve them in the investigation that led to the issuance of the Stop Order. The Chambers Justice reasoned that because the investigation implicated the appellees, they were entitled to participate. The appellant disagreed with the ruling and announced an appeal to this Court en banc.

The determinative question in this matter is whether the Chambers Justice erred in granting the appellees' petition for a writ of prohibition.

In its brief filed and argument had before this Court, the appellant asserted that it did not violate any due process rights of the appellees, as concluded

by the Chambers Justice. It insisted that it had no legal obligation to invite the appellees during its internal investigation involving its staff; that, when it became necessary to do so, it did so; and that the appellees participated in verifying the altered deposit slips.

During the hearing, counsel for the appellees was asked whether the appellees had the requisite standing to institute the action in the absence of the Customs Broker Association, and he responded affirmatively. The record further reflects that the appellant denied the appellees access to its premises pending restitution of the allegedly stolen funds. It is the law that "a party seeking to demonstrate standing to sue must assert his or her own rights or show sufficient authority to bring the action on behalf of a third party who is not before the court; nor can a party establish standing to institute an action by making claims of generalized injury common to the body politic; and that mere 'interest' in a problem, no matter how qualified the person or an organization is in evaluating the problem, is not sufficient by itself to render a person or an organization adversely affected or aggrieved for the purpose of granting said person or organization standing to obtain judicial resolution of the matter. The person or group seeking review must have suffered an injury in order to have the standing to sue." *Citizens Solidarity Council v RL*, Supreme Court Opinion, March Term, 2016; *In Re Petition of Cox*, 36 LLR 837(1990); *Chronicles Newspaper & Browne v RL*, Supreme Court Opinion, March Term, A.D. 2015. In the instant case, the appellees, as the parties directly affected by the appellant's actions, have the requisite locus standing to institute this suit independent of the Customs Broker Association. The act alleged in the petition was not said to have been committed against the Customs Broker Association as a corporate body, nor was the action instituted for and on behalf of that corporate body. The alleged act was committed against identified members of the union who were aggrieved by the appellant's actions; hence, they had standing as the aggrieved group to institute this action.

Before we address whether prohibition applies in this instance, we must first determine whether the appellant had a duty to involve the appellee in its internal investigation of its staff. We agree with the appellant that its

internal investigation of its staff did not require the appellees' participation. The appellant was legally obligated to exhaust internal administrative procedures regarding its employees before taking action. In such investigations, the appellant had no obligation to involve the appellees, who neither work for nor are subject to the appellant's employment-related administrative procedures; and no administrative action was taken against them solely on the basis of that internal investigation. Even assuming *arguendo* that the appellees should have been invited, the law provides a remedy to challenge the outcome of that investigation. Thus, any grievance concerning the appellant's administrative findings should have been pursued through the proper statutory mechanism, not through prohibition. The appellees were not employees of the appellant; therefore, their due process rights were not violated by their exclusion from the internal investigation.

This brings us to the issue of whether the extraordinary writ of prohibition is the proper remedy for the appellee to challenge the NPA's administrative action denying access to the port, where the circumstances involve alleged fraud and no prior administrative hearing.

The law in Liberia is well settled that the writ of prohibition is an extraordinary remedy that lies only to restrain a tribunal, board, or officer from acting without or in excess of jurisdiction, or in violation of the law, and only where there is no other plain, speedy, or adequate remedy available. (*Chariff Pharmacy v. Pharmacy Board et al.*, 37 LLR 135, 144 (1993); *Henries et al. v. Fahnbulleh et al.*, 42 LLR 446, 451 (2005); *Tweh v. The Liberia Petroleum Refining Company*, 31 LLR 205, 212 (1983)).

Prohibition does not lie to control or correct the exercise of administrative discretion except where such discretion amounts to a judicial or quasi-judicial act. See *Chariff Pharmacy*, *supra*, at 144. The NPA's act here is administrative: it is the management's decision to deny access based on evidence of fraud, taken pursuant to its mandate to regulate, secure, and manage the port facility under Section 6 of the National Port Authority Act (1971).

Moreover, as held in *Republic v. Jimmy*, 38 LLR 119 (1995), and *Republic v. Dennis*, 43 LLR 37 (2006), the writ of prohibition does not issue to

prevent the exercise of discretion reposed in administrative bodies except where those bodies act as tribunals determining rights with finality, a circumstance not present here. The relationship between the NPA and custom brokers is contractual and regulatory, not employment-based, and access to the Freeport is permissive and subject to compliance with port regulations, not a vested right. The action of the appellant, in denying the appellees access to the Port, was administrative and not a judicial or quasi-judicial function; hence, prohibition will not lie.

We therefore hold that the Chambers Justice erred in granting the writ of prohibition. The administrative actions of the NPA, undertaken within its statutory mandate and not constituting a judicial or quasi-judicial function, do not render prohibition appropriate. The peremptory writ is hereby vacated and reversed.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling of the Chambers Justice granting prohibition is hereby reversed, the alternative writ quashed, and the peremptory writ denied. The Clerk of this Court is hereby ordered to inform the parties accordingly. Costs disallowed. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR PEL EDWIN GAUSI APPEARED FOR THE APPELLANT. COUNSELLOR JAMES N. KUMEH, SR. APPEARED FOR THE APPELLEES.